

24SMCV03001 24SMCV03001

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-08-20

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Case Number: 24SMCV03001 Hearing Date: August 20, 2026 Dept: M

CASE NAME: Newton, et

al., v. Spillman

CASE NO.: 24SMCV03001

MOTION: Motion

for Relief from Waiver of Objections

HEARING DATE: 8/20/2026

Legal

Standard

The party to whom the discovery is directed waives any objection to the requests. (CCP § 2031.200, 2030.290(a), 2033.280(a).) The court may relieve that party from this waiver on its determination that both of the following conditions are satisfied: (1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230. [¶] (2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect." The same standard for relief from defaults used in CCP section 473 is used for relief from waiver of objections due to failure to serve a timely response to a discovery demand. (City of Fresno v. Superior Court (1988) 205 Cal.App.3d 1459, 1467.) "Inadvertence is defined as lack of heedfulness or attentiveness, inattention, fault from negligence." (Baratti v. Baratti (1952) 109 Cal.App.2d 917, 921.) "The 'excusable neglect' referred to in [CCP section 473(b)] is that neglect which might have been the act of a reasonably prudent person under the same circumstances." (Id.) A mistake may be of law or

of fact. “A mistake of fact is when a person understands the facts to be other than they are; a mistake of law is when a person knows the facts as they really are but has a mistaken belief as to the legal consequences of those facts. [Citation]” (Id.) “[A] mistake of law may be excusable when made by a layman but not when made by an attorney.” (Tammen v. County of San Diego (1967) 66 Cal.2d 468, 479.)

ANALYSIS

Plaintiff Leroy Newton moves for an order granting relief from waiver of objections to Defendant Eric D. Spillman's Requests for Production of Documents (“RPDs”) (Set 2) and Special Interrogatories (“SROG”) (Set 2).

Plaintiff demonstrates that the waiver was the result of his counsel's mistake, inadvertence, or excusable neglect. Defendant served SROG, set 2, and RPDs, Set 2, on December 23, 2025, via email. On that same date, the lead attorney handling this matter, Bitia Azimi, delegated the response to an associate, Ivan Gruikin. (Azimi Decl., ¶ 9; Gruikin Decl., ¶ 3.) However, from December 16 to 26, 2025, Gruikin was out of the office on vacation abroad. (Id., ¶ 2.) He did not specifically inform Ms. Azimi, of his 2-week departure from the office. (Id.) Upon his return to the office on December 29, 2025, he inadvertently missed the email in a pool of hundreds of emails he had received during his time off. (Id., ¶ 4.) Thus, as a result of Mr. Gruikin's inadvertence, responses were neither worked on nor calendared. (Id.) On February 2, 2026, Defendant's counsel sent an email inquiring about the outstanding responses. (Lowenberg Decl., ¶ 4.) On February 4, 2026, defense counsel again followed up regarding the responses. (Id., ¶ 5.) Counsel states that they became aware of the issue on February 4, 2026, and began meeting and conferring with defense counsel. (Azimi Decl., ¶¶ 10-11; Tarighat Decl., ¶¶ 3-5.) Plaintiff thereafter continued working diligently to finalize responses and gather responsive information and documents. (Id., ¶ 8.) On February 16, 2026, Plaintiff served written discovery responses to the outstanding discovery. (Id., ¶ 9.)

Plaintiff shows that he served substantially compliant responses to the subject discovery on February 16, 2026, ultimately only 21 days after the initial response deadline.

Accordingly, the motion is GRANTED.